

Serious Incident Report no. 13497/2021

Report date and time (UTC)	2021-09-18 [REDACTED] Sensitive operational information x2
Last modification date and time (UTC)	2023-10-02 [REDACTED]
Reporting entity/function	[REDACTED] Human resources
SIR Status	Closed
Workflow Status	Processed
SIR Category	1 - Situations of potential violations of Fundamental Rights or international protection obligations 2 - Situations of potential violations of Codes of Conduct provisions
Subject	Violations of fundamental rights and potential violations of CoC provisions
Joint operation	JO FOA Land 2021
JORA incident number	
Original source of information	[REDACTED] Human resources
FX SI Handler	HoO.FRO
Frontex resources involved	No
Use of force	No
Incident dates (UTC)	2021-09-17 [REDACTED] Sensitive operational information
Location of the incident	Bulgaria, - , Bulgaria
Latitude	[REDACTED] Operational area x3
Longitude	[REDACTED]
Location details	road between [REDACTED] and the Turkish border
Reference to the operational area	No
Type of resources / involvement	Human resources
Dead persons	
Injured persons	
Missing persons	
Details	Modus operandi of law enforcement x2
Sensitive operational information	[REDACTED] of September 17, 2021, I was performing my duty with a colleague from the Bulgarian Border Police. [REDACTED]
Operational area	[REDACTED] At [REDACTED], while we were patrolling with Frontex patrol car, we saw a man walking along the road between [REDACTED] and the Turkish border. He looked sweaty and lost, and we asked him if he could speak Bulgarian or English, and he replied in Arabic, "I speak Arabic".
Personal data	We then started asking him in Arabic [REDACTED] several questions about his identity, nationality, where he was going, and he started talking about a smuggler and border crossing technique.
Information/Allegations	I observed that he had many scratches on his left arm which he explained were the result of climbing the fence. Sensitive operational information My Bulgarian colleague called another border police patrol in order to take charge of the migrant. The 2 colleagues arrived around [REDACTED], got out of the car, and approached the man who was sitting on the ground in the back (rear wheel) of the Frontex car. One of them pounded his head from behind and kicked him in the leg. He did not react. They then asked him to get up and go to the back of the car. Once he got in the car, they turned around and went in the direction of the Turkish border.
Measures/Actions taken	• Information provided to [REDACTED] Human resources

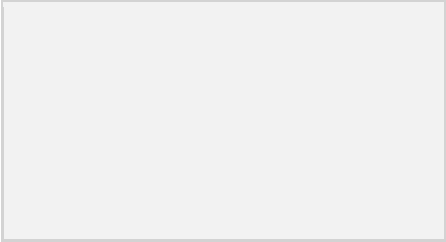
	• [REDACTED] informed Human resources • SIR send Information collected - Contributors/Entities consulted - Follow-up On 03/11/2021 the [REDACTED] Chief Directorate Border Police of Bulgaria responded to the Fundamental Rights Office in a letter concerning the incident. He informed that an inspection was carried out to verify the circumstances of the case. The inspection confirmed that the Frontex Officer and his Bulgarian counterpart did find a man without identification on the date and in the location indicated in the present SIR, and then they called for additional assistance. Contrary to the statement of the reporting Frontex Officer, the Bulgarian authorities claimed that the intercepted person was not a migrant, but a Bulgarian national, who did not carry an ID card because he did not want to lose it. He was wondering in the area searching for employment. Moreover, the person had “a difficulty in communicating”, as explained by the Bulgarian authorities. During the inspection a written statement was taken from the man concerned in which he confirmed that he was not “abused, beaten or detained” by the Bulgarian border patrol on 17/09/2021 as reported in the SIR (the original content of such statement was not provided to the Fundamental Rights Office). Considering the above-mentioned data, on 02/02/2022, the Fundamental Rights Office issued the Intermediate SIR Report recommending not closing the present incident at this stage and planning to further investigate this case. Furthermore, the Fundamental Rights Office requested the national authorities to share with the Office in future more detailed final assessments/results of investigative procedure including statements of all people witnessing an event, and other supporting evidence. In addition, the Fundamental Rights Office already requested at that stage of the procedure that further training on fundamental rights should be organized for the Bulgarian Police Officers operating at the Bulgarian-Turkish border.
Assessment	Potential violation of EU or international law, in particular related to Fundamental Rights and international protection obligations. YES Potential violation of the Frontex Code of Conduct (CoC) and/or YES Direct or indirect Involvement of Frontex participants or deployed assets: INDIRECT Negative Implications on Frontex tasks/activities: NO Serious or life-changing impact on participant’s health: NO No additional information or evidence was obtained either from the national institutions or other entities, in addition to the results of the investigation communicated by the Bulgarian authorities. The two available assessments on the same event are contradicting. The report of the Frontex Officer explains the interaction with an unidentified person, who spoke Arabic and indicated to cross the border through the fence, and how he was maltreated by the Bulgarian Border Police Officer. On the contrary, the official investigation conducted by the Bulgarian authorities only partially confirms the information provided in the report of the Frontex Officer. According to the Bulgarian authorities the alleged victim was a “Bulgarian national, who has difficulty in communicating” and not an Arabic speaking migrant, who entered the Bulgarian territory from Türkiye. According to the investigation conducted by the Bulgarian authorities the alleged use of force could not be as well confirmed.

	The Fundamental Rights Office therefore can neither confirm nor disprove the allegations in this SIR. In general, the Fundamental Rights Office would like to highlight, as provided by Articles 1 and 3 of the EU Charter, that every person has the right to human dignity as well as the right to the integrity, which should be always observed and respected in the operational activities at the borders. The responsible authorities should be committed to provide adequate instructions and training to their operational staff working at the borders on the proper treatment of the apprehended persons to be in line with the protection of fundamental rights and international protection obligations as well as principles of proportionality and necessity in the actions involving the use of force. The allegations relate to police conduct that potentially amounts to degrading treatment of a person in a vulnerable situation, which is specifically prohibited by Article 4 of the EU Charter. As defined by the European Court of Human Rights, degrading treatment is an ill-treatment which arouses in victims' "feelings of fear, anguish and inferiority capable of humiliating and debasing them and possibly breaking their physical or moral resistance". Such police alleged acts interfere with the right to human dignity which as set by Article 1 of the EU Charter, must be respected, and protected, as aforementioned.
Personal Data	<removed>
Final Report	
Key points	
Description of the event - Timeline	
Information collected - Contributors/Entities consulted - Follow-up	
Assessment	
Final conclusion - Proposals - Lessons learned	The conclusions of national investigation carried out by the Bulgarian authorities contradict the eye-witness account of the reporting Frontex officer. Given this contradiction, the Fundamental Rights Office can neither confirm nor disprove the allegations in this SIR. The Office underlines the significance of the prompt and efficient exchange of information and follow-up among involved national stakeholders and Frontex, in particular SI-Handler. In view of the above, the Fundamental Rights Office recommends the following actions: To the Bulgarian authorities: 1. To share final investigative reports with Frontex and the Fundamental Rights Office as it could be beneficial for all stakeholders to add transparency and provide feedback on the measures taken by the national authorities when incidents alleging violations of fundamental rights occur during operational activities. 2. To continuously train and sensitize police officers to the need to assess and act in accordance with fundamental rights standards, in particular in the context of the use of force. In this context, the Fundamental Rights Office requests that further training on fundamental rights should be organized for the Bulgarian Police Officers operating at the Bulgarian-Turkish border. 3. To ensure application of safeguards and provision of assistance within the limits of what is possible as soon as migrants are detected. To Frontex:

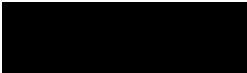


Reporting tools

Reporting tools



1. For the [redacted] to ensure that the risks outlined in this, and other SIRs related to Bulgaria, are reflected in future operation planning and implementation. 2. To encourage as well to protect Frontex operational staff reporting Serious Incidents to the Fundamental Rights Office.
--



Out of scope of the application

Reporting tools

